

Kumar Ajay Singh v. State of U.P. & 10 Others

Allahabad High Court · Division Bench · 26 May 2026 · Writ - C No. 12255 of 2026 · **Interlocutory order; listed 6 July 2026. The Tehsildar (already in seisin of the title dispute on remand) is to decide on a no-objection after notice to the private respondents and the Gram Sabha; the licensee is to apply for that no-objection and, separately, to work out an alternative route and the cost differential, both on affidavit by the adjourned date. Merits of the connection / title not decided.**

HEADNOTE

An interlocutory order on a petition for an electricity connection where the proposed supply line would cross land that is in a 28-year title dispute (petitioner says Gram Sabha land and the objectors are encroachers; the objectors rely on Clause 4.5(d) of the U.P. Electricity Supply Code, 2005 — if the line would go over third-party property the applicant must obtain a no-objection, else the licensee may take a different route at the applicant's cost differential). The title controversy has been remanded to the Tehsildar. Without deciding ownership or whether the connection must issue, the Court directed the licensee to apply to the Tehsildar for a no-objection (enclosing a website copy of the order), the Tehsildar to decide after notice to the private respondents and the Gram Sabha, and the licensee also to work out the alternative route and cost differential on affidavit. Listed 6 July 2026. Clause 4.5(d) is the framework; this is not a final construction or a grant of connection.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.5(d)

Pending a title dispute over the land a proposed supply line would cross, the licensee is to seek a no-objection from the revenue authority in seisin and also to cost an alternative route

QUESTION

Where neighbours object to a supply line over disputed land, relying on Clause 4.5(d), and the applicant says they are encroachers on Gram Sabha land, how is the connection application to proceed pending the title dispute?

HOLDING

The Court did not decide the title or grant the connection. Clause 4.5(d) was reproduced: if the supply line would go over third-party property the applicant shall obtain a no-objection, failing which the licensee may adopt a different route and the applicant bears the cost differential. Because the Tehsildar is already in seisin of the ownership controversy on remand from an appeal, the licensee is to apply to that Tehsildar for a no-objection; the Tehsildar is to decide after notice to the private respondents and the Gram Sabha, and to file an affidavit enclosing the decision. Independently, the licensee is to work out an alternative route and the cost differential on affidavit. Both affidavits are to be accepted on the adjourned date (6 July 2026). ¶ 1-5

LIMITING FACTS

Petitioner Kumar Ajay Singh seeking a connection to run a pump (says he cannot run it on alternative domestic supply); private respondent nos. 9 to 11 object; litigation over the land said to have run 28 years; Tehsildar is respondent no. 5.

FLAG Interlocutory only — listed 6.7.2026. Not a final holding that Clause 4.5(d) requires the licensee (rather than the applicant) to obtain the NOC, though the direction in this case is that the supply company apply to the Tehsildar. Companion cluster: SCJ-104 / SCJ-120 (landowner objection; those went to the DM under the Works of Licensees Rules) and SCJ-169 (cost differential of the longer route). This order does not invoke the 2006 Rules.

PRINCIPLE TAGS

clause-4.5d-landowner-objection-to-supply-line Pending a live title dispute, Clause 4.5(d) is applied interlocutorily: no-objection from the authority in seisin of title, and parallel costing of an alternative route with the applicant to bear the differential if that route is used. No connection ordered yet. ¶ 1-4

NOT DECIDED — TITLE TO THE LAND OVER WHICH THE PROPOSED SUPPLY LINE WOULD PASS, AND WHETHER THE PRIVATE RESPONDENTS ARE ENCROACHERS ON GRAM SABHA LAND

Left to the Tehsildar, already in seisin on remand. ¶ 2-4

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO THE CONNECTION, AND ON WHICH ROUTE / AT WHOSE COST

Not decided; listed 6.7.2026 after the Tehsildar's decision and the licensee's alternative-route costing. ¶ 3-5

SCJ-282 · Kumar Ajay Singh v. State of U.P. & 10 Others · · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.